



Summer Flounder, Scup, and Black Sea Bass Fishery Performance Report

July 2025

The Mid-Atlantic Fishery Management Council's (Council's) Summer Flounder, Scup, and Black Sea Bass Advisory Panel (AP) met jointly with the Atlantic States Marine Fisheries Commission's (Commission's) Summer Flounder, Scup, and Black Sea Bass AP on June 30, 2025 to review the Fishery Information Documents¹ and develop the following Fishery Performance Report for all three species. This report summarizes input from advisors about fishing effort, market trends, environmental changes, and other factors that influence catch, as well as AP recommendations for management measures. This report will be considered by the Scientific and Statistical Committee (SSC), Monitoring Committee, Council, and the Commission's Summer Flounder, Scup, and Black Sea Bass Management Board when setting or reviewing management measures for the upcoming year(s).

Please note: Advisor comments are not necessarily consensus or majority statements.

Additional comments provided by advisors via email are attached to this document but are not incorporated into the summary below.

Council Advisory Panel members present: Joseph Beneventine (NY), Joan Berko (NJ), Frank Blount (RI), Bonnie Brady (NY), Jeff Deem (VA), James Dopkin (NJ), James Fletcher (NC), Jameson Gregg (VA), Jeremy Hancher (PA), Victor Hartley (NJ), Michael Pirri (CT), Philip Simon (NJ), George Topping (MD), Charles Witek (NY), Harvey Yenkinson (NJ)

Commission Advisory Panel members present: Jack Conway (CT), Frank Blount (RI)*

*These individuals serve on both the Council and Commission APs.

Others present: Chris Batsavage, Tracey Bauer, Julia Beaty, Rick Bellavance, Alan Bianchi, Anna Birkenbach, John Boreman, Kristina Braid, Sarah Cvach, Kiley Dancy, Laura Deighan, Steve Doctor, Lannis Dodge, Hayden Dubniczki, Michelle Duval, Corrin Flora, Alexa Galvan, Sonny Gwin, Hannah Hart, Jorge Holzer, Olaf Jensen, Elise Koob, Savannah Lewis, Emily Liljestrand, Nichola Meserve, Adam Nowalsky, Ted Platz, Matt Rigdon, Chelsea Tuohy, and one unidentified phone only participant.

Discussion questions

1. What factors influenced your catch of summer flounder, scup, and/or black sea bass in recent years (e.g., markets/economy, environmental factors, fishery regulations, other factors)?
2. What other issues or concerns do you want to highlight?
3. What research recommendations do you have for summer flounder, scup, and black sea bass?
4. What recommendations do you have for summer flounder, scup, and black sea bass regulations in 2026?

¹ Available at <https://www.mafmc.org/fishery-performance-reports>.

Discussion Related to All Three Species

Total Length Retention Limit

One advisor proposed managing the recreational fishery with a total length limit approach. Under this system, anglers would retain all fish caught until a specified cumulative length is reached with the intent of eliminating discards entirely. This advisor questioned why the recreational sector has long tolerated dead discards and noted a draft, preliminary analysis shared with him that modeled impacts of the Total Length Limit approach that includes a number of assumptions.

A few advisors commented on this suggestion. Two advisors were skeptical of the approach and noted that although it may sound good in theory, they raised several concerns. They noted the potential enforcement challenges, concerns with high-grading (i.e., smaller fish discarded in favor of larger fish caught), and overall angler reluctance to retain very small fish that would have very little fillet yield (e.g., an 8-inch summer flounder). These advisors also noted that current common recreational practices already use large hooks and jigs, which often still catch smaller fish, so such gear changes to try and only catch larger fish may not help.

One advisor noted support for some components of the total length limit approach. This advisor thought this approach could work in a structured environment, like charter and headboats, where crew could track total lengths per customer and avoid high-grading behavior. This advisor noted that while they would not be supportive of keeping very small fish (less than 10 inches), it would be better to retain larger fish that are not currently legal-size as opposed to discarding them potentially dead. The advisor noted that some components of the total length approach could be particularly advantageous on days where they do not catch a single keeper size fish. They also noted that if a total length limit was implemented for just the for-hire fleet it would likely have less of an enforcement concern.

Summer Flounder

Fishery Performance and Stock Availability

Several advisors highlighted observing an abundance of small summer flounder but not seeing a lot of larger fish. One advisor particularly noted not seeing this level of abundance of small summer flounder in many years and was optimistic that this was a good sign for the future. However, there was concern about the noticeable lack of keeper-sized and larger fish, and that this trend appears to be consistent across both shallow and deep waters.

One advisor noted that recreational summer flounder fishing off southern Long Island started off slow this season and attributed this slow start to the colder than normal water temperatures. Other advisors agreed and noted similar comments for southern New Jersey, Connecticut, and Barnegat Bay/Inlet.

One advisor expressed concern that the current commercial management measures, particularly the minimum size requirements, are pushing the fishery toward increasingly larger fish, disproportionately targeting large females while smaller male fish have virtually disappeared from landings. The advisor described this size selective pressure as biologically harmful. The advisor also questioned if the current size limits were also causing the commercial and recreational sectors to unintentionally target the few remaining large males and contributing to an overall reduction in stock diversity and resilience. The advisor recommended thinking outside of the normal approach for management to resolve this issue.

Environmental Trends

One advisor highlighted the cold-water temperature last year and this year. This advisor was not sure how the colder water temperature may be impacting summer flounder but mentioned observing as much as a 25-degree difference in the bottom and surface temperatures compared to recent past years.

Commercial Fishery Issues and Market/Economic Conditions

An advisor noted there is not a lot of directed commercial fishing for summer flounder where they fish off New Jersey, but last year the price was very good and even excellent during parts of the year.

An advisor that fishes commercially from Rhode Island reported that commercial landings have been down and described his local waters as a “dead ocean,” noting a general absence of marine life, including summer flounder.

One advisor highlighted that some commercial vessels have shifted fishing north but are returning to ports in North Carolina and Virginia, where trip limits are more favorable. This advisor also noted that prices appear to be relatively similar for both the large and jumbo size fish.

Recreational Fishery Issues

Multiple advisors noted that summer flounder were not observed in high abundance last year. They also described a slow start to the current recreational season with few legal-sized fish being caught. One advisor that fishes primarily off southern Long Island particularly noted there seems to be a lot of fish between 12-16 inches, but very few keepers. Three other advisors reported recently seeing signs of summer flounder in waters of southern Long Island, Connecticut, Barnegat Bay and Inlet, and southern New Jersey.

Research Recommendations

One advisor said some of the smaller flounders caught in the southern part of the management unit may be southern flounder instead of summer flounder. Southern flounder may be moving into the Chesapeake Bay and as far north as off Delaware and New Jersey. This advisor suggested biological sampling be conducted to count gill rakers to identify southern vs. summer flounder caught in these areas.

Public Comment

One New England Fishery Management Council member questioned how commercial dead discards were calculated and if that information is available by gear type. Staff noted that commercial dead discards in recent years are derived from the Catch Accounting and Monitoring System (CAMS) and they can be separated out by gear type. This Council member also questioned at what point in the process are projected commercial discards considered when setting catch and landing limits.

Scup

Stock Availability and Fishery Performance Trends

One advisor stated that recreational scup landings are very low in New Jersey and boats in southern New York have not caught as many scup as they normally do, noting that the water has been colder than usual lately. Another advisor elaborated on this situation in New York, explaining that fewer scup than usual have been seen on the South Shore of Long Island. Like the first advisor, they suggested water temperature has something to do with this change. They also noted that, in contrast

to the South Shore, scup are biting on the North Shore in the Long Island Sound and fish are being caught in the Peconic bays.

Commercial Fishery Issues and Market/Economic Conditions

One advisor raised concern about the market competition between scup and imported tilapia, which has taken up a significant share of the market. This advisor expressed frustration with management for allowing the market share to go to tilapia despite having scup as a viable alternative.

Prior to this meeting, Council staff received a suggestion from the NOAA Fisheries Greater Atlantic Regional Fisheries Office (GARFO) that the Council consider revising regulations for the Winter I scup commercial quota period. Under current regulations, the Winter I scup commercial possession limit drops from 50,000 pounds (lbs.) to 1,000 lbs. when 80 percent of that period's allocation is landed. This provision is intended to prevent overages of Winter I quota. The suggested revision would increase management flexibility by allowing this provision to be implemented when the threshold is *projected* to be reached and making the provision discretionary (e.g., GARFO would not have to implement the provision if it would prevent the full Winter I quota from being landed). This suggested regulatory change was presented for the advisors' consideration.

One advisor explained that, if the provision was implemented as written, fishermen would likely not go offshore for 1,000 lbs. of scup. This advisor asked for clarification on the proposed regulatory change and if the existing provision has been used historically. GARFO staff commented that the provision has not been relevant in recent years but was almost needed this year. The same advisor questioned whether quota left over after implementing the current provision is always caught in November and December (the end of the Winter II quota period). GARFO staff said they would need to dig into the data to figure this out.

One advisor asked what the process would be for removing the Winter I quota period 1,000 lbs. possession limit. Council staff highlighted this could potentially be addressed through specifications, but a framework may be required. A recreational advisor recommended that this suggestion be investigated. They noted that if the recreational sector can exceed their harvest limit and not be penalized, it is unfair that the commercial sector is held so strictly to their quota.

Recreational Fishery Performance and Fishery Issues

One advisor expressed frustration with New Jersey's two-month closed season for scup in the middle of summertime (July and August). This advisor explained that they disagree with the scup management measures being tied to black sea bass and they do not understand why the summertime closure is in place, noting the importance of having the opportunity to target scup in the summer, especially since New Jersey accounts for less landings compared to northern states.

Research Recommendations

One advisor commented that they have consistently asked for a comparison of the market shares of tilapia and scup, specifically for markets in New York, Boston, and Philadelphia. They also questioned whether it is possible to develop a cooking method that reduces the bones in scup to improve their marketability.

Black Sea Bass

Abundance of Small Fish

Five advisors across four different states said they are seeing much more small black sea bass this year than normal.

Two commercial fishery advisors based in New Jersey described catching much more small black sea bass than normal in their pots. Both advisors described an abundance of small fish slipping through the mesh when the pots are pulled out of the water. One advisor said it looks like confetti. The other advisor said although it's normal to see some small black sea bass in July, this year there are lot more small fish and earlier in the year. Based on their size of about six to eight inches, this advisor guessed they may be a year or two old. In another year or two, these fish will be large enough to be kept in the commercial fishery.

A recreational fishery advisor said when the recreational season in New York opened last week, they caught lots of small black sea bass but could not find a legal sized fish, despite trying multiple sites. This was unusual for the first day of the open season. Anglers in other parts of New York such as Montauk had better luck finding legal sized fish. But in general, there are much more sub-legal fish than normal.

Two recreational fishery advisors described observations this year of mature males at a much smaller sizes than typical. Another advisor noted seeing a lot of small males in research surveys, and much smaller mature fish.

Environmental Issues

One advisor asked why water temperatures were colder in 2024, as noted in the presentation. Staff responded to say recent ocean modeling efforts have shown that although there is still an overall warming trend, there was a pause in the rate of warming in 2024, and 2025 is also predicted to be colder than recent years. For example, the position of the Gulf Stream has been farther to the south. However, it is worth keeping in mind that colder periods are typical within the normal variability of ocean conditions.

Another advisor noted that the Gulf of Maine has gotten colder and there has been forcing of very cold water from that area in recent years. And agreed that the Gulf Stream has been more southerly positioned. This advisor is based in New York and said this past winter, fishermen in that area needed to go farther south out into the Mid-Atlantic than is typical.

An advisor from New Jersey who participates in various cooperative research projects agreed that bottom temperature is having a big influence on conditions. It has been extremely cold. During a hook and line survey, few black sea bass were caught but a camera showed a lot of fish near the hook, staring at the camera, not biting. They got more bites at inshore locations, but they were all small fish. At the sites further offshore, they got much fewer bites but observed more larger fish on the cameras. This advisor said bottom temperature appears to be having an impact on the movement of black sea bass.

An advisor from Rhode Island who participates in a cooperative research survey described catching black sea bass at every wind turbine they sampled. This advisor questioned if black sea bass are leaving their traditional areas to move to the new structured habitat created by offshore wind projects. As more turbines are being built, there is much more artificial structured habitat in the water. This advisor also noted a lesser abundance of black sea bass in the spring, which could be partially due to changes in habitat use due to the wind projects, but also other reasons.

Recreational Fishery Issues

Two advisors expressed frustration with the level of discards in the recreational black sea bass fishery.

One advisor asked why management is not trying to address recreational discards by using a total length limit, as described in a prior section of this document. This advisor asked why management has allowed so much waste in the form of recreational discards and what does society gain by throwing back fish that could be utilized?

A for-hire advisor based in New Jersey said customers are frustrated that the open season for black sea bass can't be longer. The season is closed right now for two weeks, then it will open again with only a one fish possession limit for two months. This advisor feels as if the fishery is getting blamed for dead discards that are almost equal to harvest. For example, the 16.5 inch minimum size in New York is so high that anglers can't catch keepers and are getting blamed for all the fish they throw back. Just today, this advisor caught a lot of black sea bass, some 14-15 inches. It is very frustrating that anglers have to throw back so many fish when the biomass is so high. This advisor said there should be more of an open season for everyone and the minimum size should be smaller in the northern states.

One advisor noted that although the presentation showed the number of recreational trips was above the long term average in 2024, for-hire trips are likely below their long-term average. In addition, there were also fewer for-hire trips in Rhode Island in 2025.

This same advisor noted that in the for-hire fishery in the northern states, a lot of black sea bass are caught on cod trips. However, with upcoming regulations, those cod trips won't be taking place and participation is expected to decrease. For example, this advisor's for-hire business will only be running one boat in the fall, rather than two.

Two recreational fishery advisors from Connecticut said the early part of the recreational black sea bass season was much worse than normal this year due to much lower availability of keeper sized fish, although small fish were very abundant. One advisor said by this time of year, they would normally have had over a hundred keepers. This year, they've only had three, which may be due to water temperature.

These same two advisors from Connecticut said the minimum size in Connecticut and New York should be lower to allow anglers to keep more fish and reduce dead discards. They both expressed concern that with lower availability of keeper-sized black sea bass in Connecticut so far this year, striped bass might get fished harder.

One advisor reiterated concerns expressed in prior years that Connecticut and New York share Long Island Sound, but Connecticut opens much earlier than New York. This creates enforcement challenges, especially as some people may be fishing over the invisible line between the two states without realizing it. This advisor said the regulations in the two states should be the same in Long Island Sound. Another advisor said the early open season in Connecticut is helpful for party/charter businesses.

Commercial Fishery/Market Issues

One advisor said the low price for black sea bass has led to decreased participation in the commercial pot fishery. They had better prices 25-30 years ago. It's getting hard for people to make ends meet, especially with expenses for things like fuel and gear. For example, traps are \$150 each and even something as simple as a PVC buoy stick is \$8.

A New Jersey commercial fishery advisor said it's normal to get a big run of black sea bass in the spring, but this year it didn't happen. Typically, this advisor would get an average of 20 pounds of keepers per pot in the spring when the fishing is good. This year there's often only four or five pounds of keeper black sea bass per pot, sometimes eight, though there is an abundance of fish below the minimum size.

Research Recommendations

A commercial fishery advisor described seeing more small black sea bass than normal and recommended research using sub-legal mesh on pots, similar to a ventless trap survey, to help assess the abundance of small fish.

One advisor recommended the Council provide funding to develop methods for preparing whole fish such that the whole fish, including bones, can be eaten. This may be a way to get people to eat small fish, especially with the prevalence of newer types of equipment such as pressure cookers and air fryers. There could also be health benefits, for example due to high calcium content.

Additional AP Comments Provided Outside of the Meeting

Katie Almeida comments provided via phone – 6/30/25

Summer flounder comments:

- Last year there were lots of fish that didn't come up inshore. Recreational anglers in Rhode Island were not pleased. Offshore was OK but not spectacular.
- Average price was around \$3 per pound.

Black sea bass

- There are a ton of black sea bass around. Fishermen have to throw a lot back.
- There are lots of small and medium black sea bass. Hopefully this is a sign of good year classes coming.
- The price for black sea bass is low because they are so abundant. The price was about \$1.50 per pound on average.

Scup

- There are lots of scup around.
- Large and jumbo size classes have the best value.
- The overall average price is around 40-50 cents per pound.

James Fletcher comments provided via email – 7/7/25

From: James Fletcher <unfa34@gmail.com>

Sent: Monday, July 7, 2025 12:03 PM

To: Hart, Hannah; Beaty, Julia; Rago, Paul

Subject: Re: Draft Fishery Performance Report for Summer Flounder, Scup, and Black Sea Bass
THANK YOU FOR MENTIONING THE COOK FISH WITH BONE SOFTENING. Don't know who would bring up such odd question> MAY BE NOAA/NMFS SHOULD DEMAND SEA GRANT BE TASKED WITH BONE SOFTENING solution.

Now for an odd and unusual question. Science provides a number of eggs spawned per female fish for most species. I have never seen an estimate for the number of sperm per male fish. WHAT IS NUMBER OF SPERM PRODUCED FOR MALE FISH??? *** WHERE SHOULD I LOOK FOR NUMBER OF SPERM PER MALE FLOUNDER AT SIZE? ***

THE ODD THOUGHT IS TO SHIFT LANDINGS OF ALL SPECIES *****MOSTLY SUMMER FLOUNDER TOWARD SMALLER MALES. Again odd but are fewer males needed to produce sufficient sperm to fertilize existing eggs?

REASON FOR QUESTION COULD MANAGEMENT TARGET SMALLER MALE FISH?
(support for total length targeting males.

JUST A DUMB FISHERMAN ASKING!

Mike Waine comments provided via email – 7/8/25

Hi Julia, Kiley and Hannah,

Thanks for sharing. I would like to add a recommendation to the AP report to include a column for F/Fmsy as part of the OFL and ABC performance tables for all three species. I think including this information early in the presentation (i.e., slide 5 for BSB, slide 10 for SF, and slide 6 for scup) will help further minimize confusion about the consequences of ABC/OFL overages as they relate to how overfishing is defined (F/Fmsy). Also, maintaining all this information in one table will provide an easy and direct reference for the SSC, Council, ASMFC and stakeholders.

Also, can you please add that from 2022-2024 the black sea bass fishery was constrained to within 1% of the ABC in all three years. This calls into question the need for the SSC to revisit their assumptions about whether the ABC will be caught or exceeded, something they said could impact catch advice moving forward. Please include relevant references to those SSC statements for more context.

Thanks,
MW

Michael Waine

Atlantic Fisheries Policy Director
American Sportfishing Association

Greg DiDomenico comments provided via email – 7/10/25

Dear Hayden:

After reviewing the Fishery Performance Report from July, I thought it was best to make a few comments.

We fully support any regulatory change to the Winter 1 fishery that would not trigger the 1000 pound trip limit upon reaching 80% of the quota. Specifically, we would like you to consider eliminating the 1000 pound possession limit. We feel that any potential overages would be minimal and no Winter 2 paybacks would be required. Any overages could be assessed at the end of the year to determine if a payback was even necessary.

Thank you for the opportunity to comment.

Greg DiDomenico
Lund's Fisheries

Bonnie Brady comments regarding scup provided via phone – 7/10/25

- It is a problem that the commercial fishery cannot catch their full allocation. If maximum sustainable yield is the goal, we should not be leaving so many fish in the water.
- Fewer restrictions are placed on the recreational fishery for catch limit overages.
- Winter I quota period
 - An 80% threshold for implementing the reduced possession limit is too restrictive.
 - No one will go offshore for 1,000 pounds of scup. Fuel cost outweighs the potential revenue.
 - We shouldn't be leaving fish in the water at the end of the period because we don't get them back the following year and there's no guarantee in the fall that they will be easily accessible. Those that fish during the winter one offshore period should be able to access all of their quota during that period.
 - Recommendations:
 1. Raise the threshold (80%) for implementing a reduced possession limit in the Winter I quota period. It should be at least 95%.
 2. If the threshold remains at 80%, increase the reduced possession limit of 1,000 lbs to 25,000 or 30,000 lbs.
 3. GARFO's proposal to revise Winter I quota period language should be combined with the above recommendations and increased commercial quota.